

Hybrid + Remote Public Meetings in Vermont

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A New Landscape

- Prior remote public meeting provisions, created during COVID-19, sunset on July 1, 2024
- Legislature recently passed **Act 133 (S.55)**, which permanently changes for whom and under what conditions remote meetings are permissible.
- Requirements differ by **type** of public body and whether they are **‘advisory’** or **exercise public power**.

Simplified Summary

- State **nonadvisory** bodies **must** hold **hybrid** regular and special meetings
- Local **nonadvisory** bodies **must** hold **in-person** regular and special meetings, or may choose to meet in hybrid fashion
- State and local **advisory** bodies may continue to meet **remote-only**, or may choose to hold in-person or hybrid meetings

What kind of body is meeting?

- Statute draws sharp distinction between ‘**advisory**’ bodies and other public bodies
- Statute defines an “advisory body” as a “public body that does **not** have supervision, control, or jurisdiction over legislative, quasi-judicial, tax, or budgetary matters.” 1 V.S.A. § 310(1).
- If a body has final statutory decision-making authority over any legislative, quasi-judicial, tax, or budgetary matter, it is definitely **nonadvisory**, and subject to more stringent requirements.
- Question to ask is essentially: “does this body, by itself, exercise genuine public power?”

State Decisionmaking Bodies: Meeting

- Default rule:
 - Starting January 1, 2025, **State** nonadvisory bodies **must** hold all regular and special meetings as **hybrid** meetings, designating **both** a physical meeting location and an electronic meeting.

Local Decisionmaking Bodies: Meeting

- Default rule:
 - **Local** nonadvisory bodies **must** hold all regular and special meetings at a physical meeting location, but
 - **May** offer hybrid format.

All Decisionmaking Bodies: Recording

- Default rule:
 - **Must** electronically record their meetings. The recording must be posted in a designated electronic location for a minimum of 30 days following the approval and posting of the official minutes of the meeting which was recorded. 1 V.S.A. § 312(a)(6).
 - **State** decisionmaking bodies must post audio **and** video.
 - **Local** decisionmaking bodies may choose audio **or** video
 - Exception: if the municipality can demonstrate that recording would constitute an “**undue hardship**”:
 - an action required to achieve compliance would require significant difficulty or expense in light of factors including: the overall **size** of the entity, sufficient **personnel** and **staffing** availability, the entity’s **budget**, and the **costs** associated with compliance.

All Advisory Bodies

- Default rule:
 - **Flexibility.**
 - State and local **advisory** bodies can **pick**: they may continue to meet remote-only, or may choose to hold in-person meetings, or designate hybrid meetings.

Exceptions

State and local decisionmaking bodies may meet fully remotely where:

- There is a designated **statewide emergency**; or
- There is a **local incident**
 - “[A] weather event, loss of power or telecommunication services, public health emergency, public safety threat, received threat that a member of the public body believes may place the member or another person in reasonable apprehension of death or serious bodily injury, or other event that directly impedes the ability of a public body to hold a meeting electronically or in a designated physical location.” 1 V.S.A. § 312a(a)(4).
 - Must first be a formal finding and a written announcement.

What if I want different access?

For **any** meeting:

- A **resident** of the jurisdiction served by the public body, a **member** of the public body, or the **press**, may **request** that any public body provide additional access to a **regular** meeting, i.e. by designating a physical location for a remote-only meeting or by providing electronic/telephonic access to an in-person meeting.
- Requests need to be in writing, two business days prior, but **do not need to give a reason**
- The body **must** grant the request, unless:
 - there is an all-hazards event or declared state of emergency,
 - there is an “local incident,” or
 - compliance would impose an **undue hardship** on the municipality.

Additional Provisions

- **Requirements** for electronic access (allowing for direct access, public participation, telephonic attendance)
- State chairs of decision-making bodies, local legislative body chairs, municipal managers, and mayors must participate in annual, professional OML **training**
- Each municipality must **post** on its website the OML's enforcement provisions, as well as e procedures for submitting notice of an OML violation to the public body or the Attorney General.
- **Working group** tasked recommending best practices for running effective and inclusive meetings that maximize participation and accessibility, and identify the technical assistance, equipment, and training needed by municipalities for effective and inclusive remote/hybrid meetings
 - Must consult with stakeholders like the Vermont Press Association

Questions?